

Civil Service Personal Accountability Reform

Instrument: CRAG 2010 Amendments	Sponsor: Cabinet Office	Target Session: 2026–27
Document Type: Explanatory Memo & Union Brief	Legal Anchor: Primary Legislation	Classification: Official / Legislative Draft

Section 1: Executive Summary & Strategy Kernel

To establish legally enforceable personal responsibility within the Civil Service, introducing a soft-law "Charter" is structurally ineffective. Instead, this reform deploys Richard Rumelt's **Strategy Kernel** to execute targeted statutory amendments to Part 1 of the **Constitutional Reform and Governance Act 2010 (CRAG 2010)**.

1. THE DIAGNOSIS

Civil service accountability is structurally diffused by the Haldane Convention, which channels all parliamentary responsibility through Ministers. While the statutory Civil Service Code governs ethical conduct, and Treasury rules (*Managing Public Money*) assign financial stewardship to Accounting Officers, **there is no statutory anchor assigning personal responsibility for operational delivery and policy execution**. This leaves senior officials shielded from public/parliamentary accountability for delivery failures while Ministers take political blame for administrative execution they do not directly control.

2. THE GUIDING POLICY

Establish a statutory regime of **statutory personal delegation**. Preserve Ministerial accountability to Parliament for political direction and policy selection, while creating a legally binding, personal statutory duty on designated Senior Civil Servants for administrative execution, operational delivery, and candour in public administration.

3. COHERENT ACTIONS

1. Pass primary legislative amendments to CRAG 2010 (inserting § 3A, amending § 5, inserting § 10A).
2. Establish statutory **Ministerial Delivery Directions (MDDs)** allowing senior officials to formally transfer delivery risk back to Ministers when resources or timelines are unviable.
3. Embed Mandate Letters directly into Civil Service Management Code employment contracts.
4. Execute a targeted union consultation strategy providing statutory indemnities against unfair scapegoating.

Section 2: Draft Legislative Amendments to CRAG 2010

Amendment 1: Insertion of Section 3A (Senior Responsible Delivery Officers)

3A Duty to designate Senior Responsible Delivery Officers

(1) The Minister for the Civil Service shall, in respect of any major public project, policy implementation plan, or operational delivery framework exceeding a threshold prescribed by Treasury regulations, designate a Senior Civil Servant as the Senior Responsible Delivery Officer (SRDO).

(2) A designation under subsection (1) shall be made in writing ("a Mandate Letter") signed jointly by the Minister and the Head of the Civil Service, setting out:

- (a) the specific, measurable operational objectives to be achieved;
- (b) the financial, human, and organizational resources allocated to the objective; and
- (c) the timeframes for implementation.

(3) An SRDO designated under this section shall be **personally accountable** for the administrative management, execution, and risk management of the designated project or service.

(4) The personal responsibility created under subsection (3) exists independently of, and does not displace, the constitutional responsibility of the Minister to Parliament.

Amendment 2: Revision to Section 5 (Content of the Civil Service Code)

(Amendment to insert subsection (4A) following existing terms under Section 5)

(4A) The Code issued under subsection (1) must include provisions specifying that:

- (a) civil servants have a duty of personal accountability for the administration and execution of decisions under their operational control;
- (b) persistent failure to fulfill the terms of an SRDO Mandate Letter issued under section 3A constitutes a failure to uphold the Code; and
- (c) a civil servant who is instructed by a Minister to act in a manner that undermines the execution of a Mandate Letter under section 3A must seek a **Formal Ministerial Delivery Direction** in writing before proceeding.

Amendment 3: Insertion of Section 10A (Duty of Candour to Parliament)

10A Accountable Duty of Candour to Parliament

(1) A designated Senior Responsible Delivery Officer (SRDO) shall owe a direct statutory duty to Parliament to provide full, transparent, and accurate evidence regarding the operational status, resource allocation, and risks associated with their Mandate.

(2) When appearing before a Committee of either House of Parliament, an SRDO may not refuse to answer questions regarding operational delivery, failure, or delay on the grounds of Ministerial privilege, provided the questions do not require disclosure of confidential political advice provided to Ministers.

Section 3: Procedural Framework — Ministerial Delivery Directions (MDDs)

To operationalize Section 5(4A), the MDD process provides civil servants with a formal mechanism to challenge unresourced or unfeasible ministerial instructions, mirroring financial directions under Treasury rules.

MINISTERIAL DELIVERY DIRECTION (MDD) WORKFLOW

Trigger Identified (Feasibility/Resources) → 14-Day Risk Notice & Assessment → Formal SRDO Request
→ Cabinet Office Statutory Review → Ministerial Decision & Directives → Laid Before Parliament

1. Key Triggers

- **Feasibility:** Objective cannot be realistically delivered within the required timeframe using available operational systems.
- **Resource Deficit:** Allocated staffing, operational budget, or statutory powers are demonstrably insufficient to meet Mandate KPIs.

- **Systemic Risk:** Execution threatens critical service collapse or severe legal exposure in adjacent departmental operations.

2. Legal & Accountability Consequences

Transfer of Personal Responsibility: Once a Minister issues a formal Ministerial Delivery Direction overriding an SRDO's written objection, personal liability for operational failure or delay shifts entirely to the Minister. The SRDO is legally obligated to carry out the direction without fear of internal capability proceedings or contractual penalty.

Section 4: Parliamentary Explanatory Memorandum

Formal memorandum to be laid before Parliament alongside the amending legislation.

**EXPLANATORY MEMORANDUM TO THE
CONSTITUTIONAL REFORM AND GOVERNANCE (AMENDMENT) BILL 2026**

1. Introduction
This Explanatory Memorandum has been prepared by the Cabinet Office to assist members of both Houses of Parliament in their consideration of the proposed amendments to Part 1 of the Constitutional Reform and Governance Act 2010 (CRAG 2010).

2. Purpose of the Instrument
The Bill amends CRAG 2010 to establish a statutory framework for direct, personal operational accountability for Senior Civil Servants leading major public implementation programs. It addresses the historic ambiguity between political policy selection (held by Ministers) and administrative delivery (managed by officials).

3. Legislative Context
CRAG 2010 placed the Civil Service Code on a statutory footing. However, Section 5 currently restricts the Code's reach to ethical standards (Integrity, Honesty, Objectivity, Impartiality), leaving operational execution unanchored. This Bill inserts Section 3A, expands Section 5, and inserts Section 10A to create a coherent legal continuum for delivery performance and parliamentary candour.

4. Extent and Application
This instrument extends and applies to the whole of the United Kingdom, governing the UK Home Civil Service.

5. Policy Intent & Impact
By formalizing Senior Responsible Delivery Officer (SRDO) Mandate Letters and creating Ministerial Delivery Directions (MDDs), the Bill ensures that civil servants cannot be made political scapegoats for unresourced decisions, while ensuring Ministers cannot be shielded from administrative incompetence within their departments.

6. Human Rights & Legal Compatibility
The provisions are compliant with the European Convention on Human Rights (ECHR) and standard UK employment law frameworks.

Section 5: Union Communications & Consultation Strategy

A strategic brief for engaging Civil Service unions (FDA, PCS, Prospect) during draft bill stages.

Union / Stakeholder	Core Narrative & Value Proposition	Key Risk Mitigation & Reassurance
	"Protection against scapegoating." The legislation gives senior civil servants explicit	Statutory indemnity against capability proceedings when operating under an MDD;

Union / Stakeholder	Core Narrative & Value Proposition	Key Risk Mitigation & Reassurance
FDA (Senior Leaders & SRDOs)	statutory cover (MDDs) to push back against impossible delivery demands.	clear legal separation between political advice and delivery execution.
PCS & Prospect (Operational & Tech Staff)	"Operational integrity." Prevents front-line operational staff from inheriting broken systems caused by rushed, underfunded political decisions.	High materiality threshold (£50m+ / 100k+ users) prevents low-level staff targeting; existing grievance and whistleblowing rights remain fully intact.
Parliamentary Committees (PAC / PACAC)	"True factual transparency." Select committees get direct access to operational reality without ministers filtering delivery facts.	SRDOs protected when answering factual execution questions; political policy debate remains restricted to Ministerial cross-examination.

Consultation Implementation Roadmap

- Phase 1: Pre-Legislative Briefing (Day -30 to Day 0):** Confidential roundtables with General Secretaries of FDA, PCS, and Prospect. Present statutory indemnity clauses and MDD mechanics.
- Phase 2: Joint Working Group (Days 1–45):** Establish a joint Cabinet Office–Union committee to co-design updates to the Civil Service Management Code and SRDO performance evaluation criteria.
- Phase 3: Parliamentary Liaison (Days 46–90):** Issue joint evidence submissions during Committee Stage demonstrating cross-institutional consensus on protecting officials while raising delivery standards.